

25PR01396 9, 10, 11. Estate of Brian Kenneth Mariette

County: sonoma

Division: Probate

Hearing date: 2026-06-26

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9, 10, 11. Estate of Brian Kenneth Mariette

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Letters of Administration (cont. from 5/15); Probate of Will (cont. from 5/15);

To Determine Heirship (new)

Tentative Ruling on Petition to Determine Heirship: NO APPEARANCES REQUIRED. The petition is GRANTED. No objection has been filed. The Court notes a declaration, unconnected to any hearing, was filed on June 3, 2026 that addresses in part the issue of abandonment, but finds it does not function as an objection. Should an objection be made at the time of the hearing pursuant to Probate Code section 1043, the Court will proceed to set this petition for trial if all parties are present and trail the petition for letters of administration filed by Joan Mariette.

Tentative Ruling on Petition for Letters of Administration filed by Joan Mariette: APPEARANCES REQUIRED for trial setting in light of the objection of Sarah Burrage. The objection of Robert Mariette is overruled in light of the ruling on the Petition to Determine Heirship and he shall not have standing to participate in the trial on the matter.

Should the petition to determine heirship become contested at the hearing, this matter shall instead trail the outcome of the petition to determine heirship and the Court will not overrule the objection of Robert Mariette at this time.

Tentative Ruling on Petition for probate of will filed by Sarah Burrage: NO APPEARANCES REQUIRED. The petition is DENIED in light of the failure to cure all the previously identified defects. (See three issues identified in updated probate examiner notes posted June 18, 2026.)